

The Court Fees (Bihar Amendment) Act, 2007

Source: <https://indiankanoon.org/doc/3802336/>

[Skip to main content](#)

[Legal Document View](#)

[Tools for analyzing structure and cite text of judgments](#)

[Unlock Advanced Research with](#)

[PRISM](#)

[AI](#)

[Integrated with over 4 crore judgments and laws ? designed for legal practitioners, researchers, students and institutions](#)

-

[Know your Kanoon](#)

-

[Doc Gen Hub](#)

-

[Counter Argument](#)

-

[Case Predict AI](#)

-

[Talk with IK Doc](#)

-

...

[Upgrade to Premium](#)

[\[Cites](#)

[0](#)

[, Cited by](#)

[7](#)

[\]](#)

[State of Bihar - Act](#)

[The Court Fees \(Bihar Amendment\) Act, 2007](#)

[BIHAR](#)

[India](#)

[The Court Fees \(Bihar Amendment\) Act, 2007](#)

[Act 4 of 2008](#)

[Published on 7 January 2008](#)

[Commenced on 7 January 2008](#)

[\[This is the version of this document from 7 January 2008.\]](#)

[\[Note: The original publication document is not available and this content could not be verified.\]](#)

[The Court Fees \(Bihar Amendment\) Act, 2007](#)

[Bihar Act](#)

[4 of 2008](#)

[\[Dated 7th January, 2008\]](#)

[Published in Bihar Gazette \(Extraordinary\), dated 8.1.2008.](#)

[An Act to amend the Court Fees Act, 1870 in its application to the State of Bihar](#)

[Be it enacted by the Legislature of the State of Bihar in the Fifty eighth year of the Republic of India as follows:-](#)

[1.](#)

[Short title, extent and commencement.](#)

[\(1\)](#)

[It shall be called Court Fees \(Bihar Amendment\) Act, 2007.](#)

(2)

It shall extend to the whole of the State of Bihar.

(3)

It shall come into force at once.

2.

Substitution of Schedules I and II appended to Act VII, 1870.

- In the Court Fees Act, 1870 [Act VII of 1870] as amended by Court Fees [(Bihar Amendment) Act, 1995] Schedules I and II shall be substituted, by the following:-

I

Ad Valorem Fees

No.

Subject

Description

Rates

1

Plaint, written statement, pleading of an adjustment or counter claim or memorandum of appeal or a cross objection, or plaint or memorandum of appeal to set aside an award not otherwise provided in this Act, presented to any Civil or Revenue Court except those mentioned in Section-3.

When the amount or value of the subject matter in dispute-

(i) up to Rs. 30,000/- (Rupees thirty thousand)

15% of the amount or value

(ii) exceed Rs. 30,000/- (Rupees thirty thousand)

but does not exceed Rs. 5,00,000/- (Rupees five lac).

Rs. 4,500/- (Rupees four thousand five hundred) +

10% of amount or value exceeding Rs. 30,000/- (Rupees thirty thousand).

(iii) exceeds Rs. 5,00,000/- (five lac) but does

not exceed Rs. 20,00,000/- (twenty lac).

Rs. 51,500 (fifty one thousand five hundred) + 5%

of amount or value exceeding Rs. 5,00,000/- (five lac).

(iv) exceeds Rs. 20,00,000/- (Rupees twenty lac),

Rs. 1 (one) crore.

Rs. 1,26,500 (Rupees one lac twenty six thousand

five hundred) + 1% of the amount or value exceeding Rs.

20,00,000/- (Rupees twenty lac).

(v) exceeds Rs. 1 (one) crore

Rs. 2,06,500/- (Rupees two lac six thousand five

hundred) + ½% of the amount or value exceeding Rs. 1

(one) crore. Maximum Rs. 3,00,000/- (rupees three lac.)

2

Plaint in a suit for possession under Section 6 of Specific Relief Act, 1963.

According to rates as prescribed in item no.1.

3

Probate of a will or letters of administration

with or without will annexed.

10% of the amount or value [minimum Rs. 500/-

(Rupees five hundred) & maximum Rs. 3,00,000/- (Rupees three

lac)].

4

Certificate under the Succession Certificate Act, 1889.

As prescribed in item no. 3 on amount or value indicated on certificate.

II

Fixed Fees

No.

Subject

Description

Fee

1

(1) Application or petition

When presented to an administrative or revenue officer of State Government or Central Government or local body or in a civil or criminal or small cause court other than High Court and which is not otherwise provided-

Rs. 20/- (Rupees twenty)

(2) When presented to the High Court-

(i) Under Article 226, 227 or under Article 226 and 227 of the Constitution-

(a) To file a general application.

Rs. 500/- (Rupees five hundred).

(b) To file a Public Interest Litigation.

Rs. 1000/- (Rupees one thousand).

(ii) On other applications

Rs. 250/- (Rupees two hundred fifty).

(3) Application for Civil Revision under Section 115 of Civil Procedure Code or Criminal Revision under Section 397 read with Section 399/401 of Criminal Procedure Code.

Rs. 250/- (Rupees two hundred fifty).

2

Application to call for records from any other Court.

Rs. 50/- (Rupees fifty).

3

Application for leave to sue as a pauper or for leave to appeal as pauper.

Rs. 20/- (Rupees twenty).

4

Plaint or memorandum of appeal to establish or prove a right of occupancy.

Rs. 100/- (Rupees one hundred).

5

Bail Bond or other instruments of obligation given in pursuance of any order made by a Court or Magistrate under any section of the Code of Criminal Procedure, 1973 or the Code of Civil Procedure, 1908 and not otherwise provided by this Act.

Rs. 20/- (Rupees twenty).

6

Undertaking under Section 49 of the Indian Divorce

Act, 1869 (4 of 1869).

Rs. 100/- (Rupees one hundred).

7

Affidavit

(i) In all other courts except the High Court.

Rs. 20/- (Rupees twenty Rupees).

(ii) In the High Court.

Rs. 30/- (Rupees thirty).

8

Vakalatnama

(i) In all other courts except the High Court.

Rs. 30/- (Rupees thirty) [Court fee Rs. 20/- +
Advocate Welfare stamps Rs. 10/-].

(ii) In the High Court.

Rs. 50/- (Rupees fifty) [Court fee Rs. 30/-+
Advocate Welfare stamp Rs. 20/-].

9

All kinds of copies of any judgement, decree,
order, proceeding, the documents filed in a proceeding etc.

Rs. 10/- (Rupees ten) per page.

10

Caveat

Rs. 100/- (Rupees one hundred)

11

Application for review of judgement.

Rs. 500/- (Rupees five hundred) only.

12

Memorandum of Appeal when the appeal is not from a
decree or an order having the force of a decree and is
presented.

(a) To any Civil Court other than a High Court, or
to any Revenue Court, or Executive Officer, other than the High
Court or Chief Controlling Revenue or Executive Authority.

Rs. 50/- (Rupees fifty).

(b) To High Court or Chief Controlling Executive
or Revenue Authority.

Rs. 100/- (Rupees one hundred).

13

Plaint or Memorandum of Appeal in each of the
following suits:-

(i) To alter or set aside a summary decision or
order of any of the Civil Courts (not established by Letters
Patent or not a Revenue Court)

Rs. 500/- (Rupees five hundred).

(ii) To alter or cancel any entry in a register of
the names of proprietors of revenue paying estates.

Rs. 500/- (Rupees five hundred).

(iii) To obtain a declaratory decree where no

consequential relief is prayed.

Rs. 1000/- (Rupees one thousand).

(iv) To set aside an award.

Rs. 1000/- (Rupees one thousand).

(v) To set aside an adoption.

Rs. 1000/- (Rupees one thousand).

(vi) For every other suit where it is not possible to estimate at a money value the subject matter in dispute and which is not otherwise provided for by this Act.

Rs. 1000/- (Rupees one thousand).

14

Agreement in writing stating a question for the opinion of the Court under the Code of Civil Procedure, 1908.

Rs. 200/- (Rupees two hundred).

15

(1) Every petition under the Indian Divorce Act, 1869 except under Section 44 of the same Act and every Memorandum of Appeal under Section 55 of the same Act.

Rs. 500/- (Rupees five hundred).

(2) Plaint or Memorandum of Appeal under the Parsi Marriage and Divorce Act, 1865.

Related AI tags, queries and research notes

Translation